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Flamin' Hot Cheetos, other popular snacks could be outlawed at California schools

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California school kids could be waving goodbye to Flamin' Hot Cheetos, Doritos and Mountain Dew.

State lawmakers introduced a bill this week that would ban the heavily processed snacks and other similar ones in public schools — citing detrimental health effects.

"The science is complicated but the purpose of the bill is not," said bill author state Assemblymember Jesse Gabriel at a press conference Tuesday.

"This is about protecting our students from chemicals that have been proven to harm children and interfere with their ability to learn."

Lawmakers in California introduced a bill that would ban heavily processed snacks from schools. Frito-Lay

Described by Gabriel as "first-in-the-nation legislation," Assembly Bill 2316 would outlaw California public schools from serving foods containing synthetic food dyes Red 40, Yellow 5, Yellow 6, Blue 1, Blue 2 and Green 3.

Such additives can be found in a myriad of popular treats, including M&Ms, Twinkies, Gatorade and, of course, Flamin' Hot Cheetos.

"This is not a food ban," Gabriel said. "This is not banning Flamin' Hot Cheetos in California."

The legislation would also ban titanium dioxide, a coloring agent that is often used in sunscreens, cosmetics, paints, and plastics, the Democrat said. The compound has already been banned for use in foods in the European Union and products containing it are required to be labeled with a warning about its potential side effects to children.

Bill author Assemblymember Jesse Gabriel said the bill is "about protecting our students from chemicals." Jesse Gabriel/LinkedIn

Gabriel pointed to a 2021 study by the California Environmental Protection Agency, which found that "consumption of synthetic food dyes can result in hyperactivity and other neurobehavioral problems in some children."

The father of three said the issue was "personal" to him as a person struggling with ADHD who is parenting children with the same disorder.

His office also claimed that addictions have links to cancer and harm to the immune system.

Schools would be prohibited from serving foods containing synthetic food dyes Red 40, Yellow 5, Yellow 6, Blue 1, Blue 2 and Green 3. The bill is expected to be heard in the coming weeks. Frito-Lay

The proposed law would still allow schools to sell foods containing the synthetic dyes, but only after 30 minutes past the end of the school day or events that take place off-campus.

The National Confectioners Association, which advocates for chocolate and candy companies including Mars, Haribo and Hershey, slammed the proposed legislation as part of a "sensationalistic agenda which is not based on facts and science."

"These activists are dismantling our national food safety system state by state in an emotionally-driven campaign that lacks scientific backing," NCA said in a statement.

The bill is expected to be heard in the Assembly Education Committee in the coming weeks.

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